

24STCV19188 24STCV19188

County: los-angeles

Division: Civil Law and Motion

Department: 512

Hearing date: 2026-07-17

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Case Number: 24STCV19188 Hearing Date: July 17, 2026 Dept: 512

HEARING DATE: Fri., July 17, 2026 JUDGE /DEPT: Mkrtchyan/512

CASE NAME: Givens

v. City of Los Angeles, et al. COMP.

FILED: 07-30-24

CASE NUMBER: 24STCV19188

TRIAL DATE:

N/A

NOTICE: NO

PROCEEDINGS: MOTION

TO COMPEL FURTHER DISCOVERY RESPONSES TO SPECIAL INTERROGATORIES – SET ONE;

MOTION TO COMPEL INITIAL RESPONSES TO REQUEST FOR ADMISSIONS

MOVING PARTY: Plaintiff

Dermot Givens

RESP. PARTY: Defendant Cory Palka

MOTION TO COMPEL FURTHER DISCOVERY RESPONSES TO SPECIAL INTERROGATORIES,

SET ONE; MOTION TO COMPEL INITIAL RESPONSES TO REQUESTS FOR ADMISSION, SET TWO

(CCP §§ 2030.300, 2033.280)

TENTATIVE RULING:

Plaintiff Dermot Givens'

Motion to Compel Further Discovery Responses to Special Interrogatories-Set One is GRANTED. Defendant is to provide further and verified responses to Plaintiff's SROGs within 20 days of this Court's order.

The Court admonishes

Plaintiff and reminds Plaintiff to follow the Stipulated Protective Order requiring parties to file protected material under seal. (See 11/22/24 Order.)

Plaintiff Dermot Givens'

Motion to Compel Initial Responses to Requests for Admissions, Set Two is DENIED.

Moving party is ordered to
give notice.

OPPOSITION: Filed
on June 1, 2026 ☒ Late ☐ None

REPLY: Filed
on June 8, 2026 ☒ Late ☐
None

ANALYSIS:

I.

Background

On June 30, 2024, Plaintiff Dermot Givens ("Plaintiff") filed an action against Defendants City of Los Angeles ("City of LA"), Los Angeles Police Dept., LAPD Officer Emmanuel Figueroa, LAPD Officer Gregory Papik, LAPD Officer L. Williams, LAPD Officer L. Zaragoza, LAPD Commander (Retired) Cory Palka, and Does 1 through 10, alleging causes of action for (1) Cal. Const. Art. I, section 3, (2) Cal. Const. Art. I, section 13, (3) Cal. Civil Code section 52.1, (4) false imprisonment, (5) Cal. Civil Code section 51.7, (6) assault, (7) negligence, and (8) IIED. (Complaint, p. 1.) On January 26, 2026, Plaintiff identified Doe 1 as Antonio Gomez and Doe 2 as Rocky Martinez. On April 6, 2026, Plaintiff identified Doe 3 as Roger Klohr and Doe 4 as Amar Pal. On April 15, 2026, Plaintiff identified Doe 5 as Antonio

Gomez again. On May 26, 2026, Plaintiff identified Doe 6 as Pela Aceves.

On January 20, 2026, the Court granted summary judgment in favor of Defendants City of LA, Emmanuel Figueroa, Gregory Papik, Christian Zaragoza, and Christian Williams. On February 5, 2026, Judgment was entered in favor of Defendants City of LA, Emmanuel Figueroa, Gregory Papik, Cristian Zaragoza, and Christian Williams.

On February 10, 2026, Palka filed an Answer.

On May 21, 2026, Plaintiff filed the instant Motion to Compel Further Responses to Special Interrogatories ("SROGs") Set One ("SROGs Motion").

On June 1, 2026, Defendant Cory Palka ("Defendant") filed an Opposition to the SROGs Motion.

On June 5, 2026, Plaintiff filed the instant Motion to Compel Discovery Responses to Request for Admissions ("RFAs") Set 2 from Defendant (the "RFAs Motion").

On June 8, 2026, Plaintiff filed a Reply to the SROGs Motion.

On June 11, 2026, the Court continued the SROGs Motion and ordered the parties to meet and confer twice by telephonic conference and to file a joint statement report prior to the continued hearing. (6/11/26 Order.) The Court also admonished Plaintiff to follow the Stipulated Protective Order, and the Court continued the RFAs Motion to the same hearing date as the SROGs Motion. (6/11/26 Order.)

On July 6, 2026, Defendant filed an Opposition to the RFAs Motion.

On July 7, 2026, Defendant filed a Status Report Re: Remaining Issues on the SROGs Motion.

On July 9, 2026, Plaintiff filed a Reply regarding the RFAs Motion.

On July 13, 2026, Plaintiff filed a
Status Report Re: the SROGs Motion.

II.

Legal

Standard & Discussion

A.

SROGs Motion

Parties' Arguments

Plaintiff seeks evidence of how LAPD
officers acting under Defendant's leadership are involved in targeting
Plaintiff. (SROGs Motion, p. 3.) Plaintiff had a phone conversation with
Defendant's counsel, but Defendant refused to amend his responses. (SROGs Motion,
p. 4.)

In Opposition, Defendant argues that
the SROGs Motion was filed and served untimely and lacks the required separate
statement. Further, Defendant argues Plaintiff fails to cite or rely on any
legal authority for compelling further responses. (Opp., p. 1.)

In Reply, Plaintiff reiterates
arguments raised in the SROGs Motion.

Analysis

Code of Civil Procedure section
2030.300, subdivision (a), provides that "[o]n receipt of a response to
interrogatories, the propounding party may move for an order compelling a
further response if the propounding party deems that any of the following apply:
(1) [a]n answer to a particular interrogatory is evasive or incomplete [;] (2)
[a]n exercise of the option to produce documents under Section 2030.230 is
unwarranted or the required specification of those documents is inadequate [;
or] (3) [a]n objection to an interrogatory is without merit or too general."

The motion shall be accompanied
by a meet and confer declaration under Code of Civil Procedure section

2016.040. (Code Civ. Proc., § 2030.300(b)(1).) The motion must be filed within 45 days from responses, supplemental responses, or a specific later date agreed to in writing. (Code Civ. Proc., § 2030.300(c).)

California Rules of Court, Rule 3.1345 requires a separate statement to be filed in conjunction with a motion to compel further responses to interrogatories.

Here, the Court finds Defendant's responses to the SROGs are solely unverified objections. Thus, the Court does not find the SROGs Motion untimely. (See Code Civ. Proc., § 2030.300.)

However, the Court finds there is no separate statement filed in support of the Motion. (See Cal. Rules of Court, rule 3.1345, subd. (a).) Thus, Plaintiff's rationale for why a further response is needed is unclear.

That said, upon review of Defendant's responses provided to Plaintiff's SROGs, the Court finds the responses to the SROGs are unverified and constitute boilerplate objections. (See SROGs Motion, Doc. 15, Exh. 5; Code Civ. Proc., § 2030.300, subd. (a)(3); see also *Korea Data Systems Co. v. Superior Court* (1997) 51 Cal.App.4th 1513, 1515.) Defendant fails to provide the specific ground for each objection and/or to provide a response to the extent possible if only part of the SROG is objectionable. (Code Civ. Proc., §§ 2030.220, 2030.240.)

Further, there is no copy in the Court's record of Defendant's SROGs responses with an attached verification as required by the Code of Civil Procedure. (See Code Civ. Proc., § 2030.300.)

For these reasons, the SROGs Motion is GRANTED.

B.

RFAs Motion

Plaintiff moves to compel Defendant's responses to RFAs Set Two served on April 30, 2026, and May 16, 2026. (Motion.)

In Opposition, Defendant states the RFAs provided in conjunction with the RFAs Motion are directed to City of LA, not Defendant, and thus Defendant is not obligated to respond to the RFAs. Further, Defendant states Plaintiff failed to meet and confer prior to filing the RFAs Motion, and Defendant requests monetary or terminating sanctions against Plaintiff for making the RFAs Motion.

In Reply, Plaintiff makes various ambiguous arguments and then asserts the parties met and conferred regarding the issues raised in the RFAs Motion. Plaintiff also asserts that Defendant provided verified responses to the RFAs and reiterates arguments made in the RFAs Motion.

A party must respond to requests for admissions within 30 days after service of such requests. (Code Civ. Proc., § 2033.250, subd. (a).) "If a party to whom requests for admission are directed fails to serve a timely response...(a) [that party] waives any objection to the requests, including one based on privilege or on the protection for work product..." (Code Civ. Proc., § 2033.280, subd. (a).) "The requesting party may move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted, as well as for a monetary sanction under Chapter 7." (Code Civ. Proc., § 2033.280, subd. (b).)

Here, Plaintiff provides a copy of the RFAs in conjunction with the Motion (RFAs Motion, Exh. 6); however, there is no proof of service accompanying the RFAs and, moreover, the RFAs are directed towards City of LA, who is a different defendant in this matter than Defendant Palka.

The Court may not compel Defendant to respond to discovery requests made to a different defendant and absent proof of proper service.

Thus, the RFAs Motion is DENIED.

Defendant seeks sanctions under the Code of Civil Procedure section for compelling a further response to discovery; however, the RFAs Motion appears to be brought as a motion seeking initial responses, and thus Defendant's request is inapt.

The Court does
not award sanctions in relation to the RFAs Motion.

III.

Conclusion & Order

For the foregoing reasons,
Plaintiff Dermot Givens' Motion to Compel Further Discovery Responses to
Special Interrogatories-Set One is GRANTED. Defendant is to provide further and
verified responses to Plaintiff's SROGs within 20 days of this Court's order.

The Court admonishes
Plaintiff and reminds Plaintiff to follow the Stipulated Protective Order
requiring parties to file protected material under seal. (See 11/22/24 Order.)

Plaintiff Dermot Givens'
Motion to Compel Initial Responses to Requests for Admissions, Set Two is
DENIED.

Moving party is ordered to
give notice.